

	2025-01494975	Continued to 07/06/2026
6	Pham vs. Truong, MD. 2024-01407145	Motion for Summary Judgment and/or Adjudication The unopposed motion of defendants Son Truong, M.D. and Struong Cosmetic for summary judgment on plaintiffs Binh Duong and Dieu Pham aka Mei Tiao Fan for medical negligence and loss of consortium is granted. Legal Standard A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850. “A prima facie showing is one that is sufficient to support the position of the party in question.” <i>Id.</i> at 851. A defendant seeking summary judgment meets the burden of showing that a cause of action has no merit by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. Code Civ. Proc. § 437c(p)(2); <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575. The scope of this burden is determined by the allegations of the plaintiff’s complaint. <i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381–382 (pleadings serve as the outer measure of materiality in a summary judgment motion); <i>580 Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18–19 (respondent only required to defeat allegations reasonably contained in the complaint). A cause of action “cannot be established” if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. <i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597. Once the defendant's burden is met, the burden shifts to the plaintiff to show that a triable issue of fact exists as to that cause of action. <i>Id.</i> In making this determination, the moving party's affidavits are strictly construed while those of the opposing party are liberally construed. <i>Villacres v. ABM Industries, Inc.</i>, 189 Cal. pp.4th at 575. The facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences therefrom must be accepted as true. <i>Id.</i> Substantive Law The elements of a professional negligence cause of action are: (1) the duty of the professional to use such skill, prudence and diligence as other members of his profession commonly possess and exercise; (2) breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or